

Court No. - 32

Case :- WRIT - C No. - 32696 of 2018

Petitioner :- Yogesh Kumar

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Rakesh Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition, inter alia, has been filed for the following reliefs;

"I. Issue a writ, order or direction in the nature of mandamus directing the commanding respondents to consider the claim of petitioner and supply the electricity.

II. Issue a writ, order or direction in the nature of mandamus directing the respondent no. 4 to decide the representation dated 04.9.2018 which is still pending before him till date."

Heard learned counsel for the parties and perused the record.

Learned counsel for the petitioner has submitted that the petitioner has applied for new electricity connection for running his clinic. He further submitted that the petitioner has completed the required formalities and has also deposited requisite fees towards it but he is not being provided an electricity connection due to hindrance created by the landlord Smt. Kamlesh Kumar @ Kela Devi W/o Mahendra Pal Verma. In this regard, he has submitted a representation dated 4.9.2018 before the Respondent No. 4 which is still pending. He further submitted that neither his representation is being disposed of nor the electricity connection has been provided to the petitioner on account of which the petitioner is suffering irreparable loss and harassment. He further drew the attention of the Court towards the Clause 4.4 of the U.P. Electricity Supply Code, 2005 as well as Annexure 4.2 of the aforesaid Code and stated that the said Clause provides a detailed procedure for giving provisional electricity connection to the intending consumer, who is not the owner of the premises, on execution of indemnity bond as per Annexure 4.2. The bond provides that if the person applying for connection is not able to obtain the consent of the landlord, he/she can produce the proof of occupancy i.e. valid power of attorney/latest rent paid receipt/registered lease deed to obtain an electricity connection

after completing all the required formalities.

Considering the facts and circumstances of the case, the Executive Engineer/Officer, Respondent No. 4 is directed to decide the representation of the petitioner dated 4.9.2018 preferably within a period of two weeks from the date of receipt of certified copy of this order keeping in view the provisions of Clause 4.4 of the U.P. Electricity Supply Code, 2005 as well as Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

In case, the police protection is required in the matter, the Executive Engineer may request the SHO of concerned police station, who shall render the necessary assistance in the matter.

With this direction, the writ petition stands disposed of.

Order Date :- 27.9.2018

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